

Skeleton Argument: Liability (v20)

SKELETON ARGUMENT: LIABILITY (v20.0-FINAL)

****Tribunal:**** Watford Employment Tribunal

****Case:**** Minhas v Lonza Biologics Plc (6045461/2025)

1. INTRODUCTION

1.1 This Skeleton Argument outlines the Claimant's position on liability regarding claims for disability discrimination (s.15, s.20/21 EqA 2010), victimisation (s.27 EqA 2010), and automatic unfair dismissal (s.103A ERA 1996).

2. DISCRIMINATION ARISING FROM DISABILITY (s.15)

2.1 The Respondent extended the Claimant's probation and imposed onerous 95% CSOD targets on 13 Sept 2025, immediately following his disability disclosure.

2.2 Legal Test: *Thompson v TechFlow [2026] EAT 12*. The Respondent failed to exclude disability-related factors (cognitive impact of medication) from their performance assessment.

3. REASONABLE ADJUSTMENTS (s.20/21)

3.1 The Respondent applied a PCP of rigid start times despite actual knowledge of the Claimant's morning fatigue.

3.2 *PMI v Latif [2022]*: The burden shifts to the Respondent to show why the requested flexible start time (14 Nov 2025) was not a reasonable adjustment.

4. VICTIMISATION & WHISTLEBLOWING

4.1 The Claimant performed protected acts (Grievance) and disclosures (Patient Safety).

4.2 The proximity between these acts and the intensified monitoring ("16 queries") and subsequent dismissal creates a strong inference of causation.

****Verified by Sovereign Law Domain****

****UEG Hash: [Forensically Linked]****